

Line 8

Case Name: *Angel Solorio Lomeli v. Angela Yuliana Solorio, et al.*

Case No.: 22CV404566

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Angel Solorio Lomeli (“Plaintiff”) moves under Code of Civil Procedure 473 for discretionary relief from the Order filed on August 14, 2025. Notice of Motion (the “Motion”) at 1:21-23.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background and Procedural History

This action arises from a property dispute between Plaintiff Angel Lomeli and his daughter, Defendant Angela Solorio, concerning real property located at 38760 Dinosaur Point Road in Hollister, California. Plaintiff asserts causes of action for Constructive Trust, Accounting, and Fraud and Deceit against his daughter for refusing to reconvey a property that Plaintiff granted to her pursuant to a deed recorded on October 25, 2019.

Plaintiff filed this action on September 19, 2022, and filed his operative Third Amended Complaint on December 5, 2024. On April 29, 2025, Defendant filed a Motion for Judgment on the Pleadings on the ground that the First Cause of Action for Imposition of Constructive Trust and Accounting failed as the Third Amended Complaint did not state any underlying cause of action which is a necessary predicate for such relief, and that the Second through Sixth Causes of Action for Fraud and Deceit were meritless as they were based on privileged testimony given by Solorio in a restraining order case against her father and Plaintiff did not allege that he relied on the testimony or was damaged thereby.

Plaintiff did not file any Opposition to the Motion for Judgment on the Pleadings, and Defendant filed a Notice of Non-Opposition to Motion for Judgment on the Pleadings on July 31, 2025. On Friday, August 8, 2025, at 9:00 a.m. in Department 16, Defendant’s Motion for Judgment on the Pleadings was heard before the Honorable Roberta Hayashi. Counsel of record for both Parties were present. The Court was informed that Plaintiff’s counsel had intended to appear on behalf of Plaintiff to argue why, under Code of Civil Procedure 473(b) either the motion for judgment on the pleadings should not be granted, or leave to amend should be allowed, but that Plaintiff’s counsel was temporarily precluded from appearing before the Court to make such argument. (Order 1:20-24) (filed: August 14, 2025).

After full consideration of the evidence, authorities and arguments made by moving party, and no written opposition being filed thereto, on August 7, 2025, the Court posted its tentative ruling. The court adopted its tentative ruling on August 8, 2025, and issued its order dated August 12, 2025, which was filed on August 14, 2025, granting Defendant's Motion for Judgment on the Pleadings in favor of Defendant without leave to amend. (*Id.* 2:7-8). Leave to amend was denied as there is no showing made by Plaintiff as to how the Complaint may be amended to state a viable cause of action against Defendant. (*Id.* 1:26-28.)

On October 10, 2025, Plaintiff filed his first Motion for Relief from the August 14, 2025 Order Granting Motion for Judgment on the Pleadings, seeking *mandatory* relief under the attorney-fault provision of Code of Civil Procedure section 473, subdivision (b). At the November 14, 2025 hearing, the sole ground raised in Plaintiff's Motion was under the mandatory-relief provision of Section 473(b).

During oral argument at the November 14, 2025 hearing, Plaintiff's counsel not only admitted that the Motion was brought only on the ground of the mandatory-relief provision but also that the Motion on this ground fails for the reasons set forth in this Order. Yet during oral argument Plaintiff's counsel also argued for the first time that the Court should grant relief under Section 473(b)'s *discretionary*-relief provision. The Court, in an abundance of fairness, granted Plaintiff leave to file a new motion within 30 days that addresses only this point of whether the Court should grant Plaintiff Relief from the August 14, 2025 Order based on the discretionary-relief provision of Section 473(b). Order at p. 3, fn. 1, lines 24-25 (filed: Nov. 14, 2025).

The current motion for discretionary relief was filed on December 23, 2025. Plaintiff moves for discretionary relief from the Order filed on August 14, 2025 pursuant to Code of Civil Procedure Section 473. (Motion 1:20-23.) Defendant opposes, arguing that the Court lacks jurisdiction to consider the second Motion for Relief under Code of Civil Procedure section 1008 as Plaintiff does not show new or different facts, circumstances, or law. (Mem. in Opp'n 1:17-25.) Defendant also contends the motion fails to establish that Attorney Robert J. Tennant's failure to file an Opposition to Defendant's Motion for Judgment on the Pleadings was the result of mistake, inadvertence, surprise, or excusable neglect, such that relief under Code of Civil Procedure section 473 is warranted. (Mem. in Opp'n 1:17-25.)

II. Governing Legal Standards

A court may relieve a party from an order taken through mistake, inadvertence, surprise, or excusable neglect, if the application is made within six months and is accompanied by the proposed pleading or response. (C.C.P. § 473(b)) The test for excusable neglect is whether a reasonably prudent person under the same or similar circumstances might have made the same error. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) California policy strongly favors adjudication on the merits, and doubts are resolved in favor of granting relief. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.)

Section 473(b) is remedial and is liberally construed. (*Id.*) Excusability remains an

objective inquiry. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) Conduct falling below the professional standard of care is not excusable merely because it is labeled mistake or neglect. (*Id.*)

Section 1008(e) provides that it applies to all applications to reconsider an order or to renew a previous motion, and that no such application may be considered unless made according to that section. (C.C.P. § 1008(e).) Section 1008(b) permits a subsequent application for the same order only upon new or different facts, circumstances, or law, shown by affidavit identifying the prior application and the asserted new matter. (*Id.*) The central inquiry under section 1008(b) is whether the later motion seeks the same order in substance, not whether it uses a different label or theory. (*Ron Burns Constr. Co., Inc. v. Moore* (2010) 184 Cal.App.4th 637, 638.) The California Supreme Court has established that sections 473(b) and 1008 do not conflict, that section 1008 governs renewed applications under section 473(b), and that the court lacks authority to consider a noncompliant renewal. (*Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.)

The mandatory and discretionary provisions of section 473(b) are legally distinct, with different scope, elements, and consequences. (*Martin Potts & Assocs., Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.) A motion invoking one prong does not automatically place the other prong before the court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119.)

III. Analysis of the Motion for Discretionary Relief

Issue 1: Section 1008 does not bar the second Section 473 motion here.

The Court must first determine whether Code of Civil Procedure section 1008 bars consideration of Plaintiff's second motion for relief under section 473(b). Defendant contends that Plaintiff's motion for relief filed on December 23, 2025 sets forth the exact same factual arguments that were presented in Plaintiff's first Motion for Relief filed on October 10, 2025, and that Plaintiff has not complied with the requirements of Code of Civil Procedure section 1008. (Mem. in Opp'n 3:23-28 & 5:3-12.) Defendant argues that the second Motion for Relief does not present any new or different facts, circumstances, or law, and therefore the Court lacks jurisdiction to consider it. (Mem. in Opp'n 5:3-12.) Plaintiff responds that Plaintiff's current motion is not a motion that asks the Court to reconsider anything and therefore it is not required to contain any new or different facts, circumstances, or law. (Plaintiff's Reply in Support 2:10-14.) Plaintiff asserts that the two motions arise under two totally separate and distinct sections of CCP section 473. (Pl.'s Reply in Supp. 2:10-14.) Plaintiff further contends that the current Motion addresses only the point of whether the Court should grant Plaintiff Relief from the August 14, 2025 Order based on the discretionary-relief provision of Section 473(b). (Pl.'s Reply in Supp. 2:15-20.)

The Court finds that Plaintiff's second motion is a renewed application for the same order within the meaning of section 1008(b), because both motions seek relief from the same August 14, 2025, order. (Order 1:20-24.) Under the substance-over-label approach established by controlling authority, the central inquiry is whether the later motion seeks

the same order in substance, not whether it uses a different label or theory. (*Ron Burns Constr. Co., Inc. v. Moore* (2010) 184 Cal.App.4th 637, 638.) Both motions seek to undo the effect of the August 14, 2025 order granting judgment on the pleadings without leave to amend, and therefore both seek the same relief notwithstanding their different statutory grounds.

But Section 1008(b) bars only a renewed request that lacks new or different facts, circumstances, or law. On the factual record, Plaintiff’s motion for relief filed on December 23, 2025, sets forth the exact same factual arguments that were presented in Plaintiff’s first Motion for Relief filed on October 10, 2025. (Mem. in Opp’n 3:23-28.) The underlying narrative is the same in both motions: Plaintiff again relies on the calendaring error, opposing counsel informing Attorney Tennant that the State Bar website showed him suspended, and Tennant’s administrative suspension at the date and time of the hearing. (Decl. of Robert J. Tennant ¶ 4; Mem. in Opp’n 3:23-28.) The record therefore does not show new or different facts.

On the legal question, however, the Court finds that Plaintiff has satisfied section 1008(b). The first motion sought only mandatory relief, and the court’s November 14, 2025, ruling did not adjudicate discretionary relief; instead, the Court gave Plaintiff 30 days to provide supplemental pleadings in support of his request for discretionary relief pursuant to CCP section 473. (Decl. of Robert J. Tennant ¶ 6.) Because the two prongs are doctrinally distinct and a motion under one does not automatically invoke the other, a ruling on the mandatory prong does not by itself decide the discretionary prong. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119.)

Plaintiff’s second motion (i.e., the current Motion) is not merely a reargument that mandatory relief should have been granted; it advances a separate legal basis requiring a different showing, namely, *discretionary* relief based on excusable neglect under a different part of section 473(b). (*Martin Potts & Assocs., Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.) The California Supreme Court has established that section 1008 applies to renewed section 473 motions, but the shift from a motion that sought only mandatory relief to one that seeks only discretionary relief presents new or different law under section 1008(b), especially where the Court expressly recognized that the discretionary prong had not yet been adjudicated and invited supplemental briefing on that specific ground. (Decl. of Robert J. Tennant ¶ 6; *Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.)

Accordingly, the court rejects Defendant’s jurisdictional challenge under Code of Civil Procedure section 1008. The shift from mandatory relief to discretionary relief, coupled with this court’s November 14, 2025 Order expressly authorizing supplemental briefing on the discretionary-relief ground,⁸ constitutes new or different law sufficient to

⁸ (Order at p. 3, fn. 1, lines 24-25 [“the Court, in an abundance of fairness, GRANTS Plaintiff LEAVE to file a new motion within 30 days from today that addresses only this point of whether the Court should grant Plaintiff Relief from the August 14, 2025 Order based on the discretionary-relief provision of Section 473(b).”] (filed: Nov. 14, 2025).

permit consideration of this second motion under section 1008(b).

Issue 2: Calendaring error does *not* constitute excusable neglect here.

The Court now turns to the merits of Plaintiff's request for discretionary relief. Plaintiff contends that Attorney Tennant mistakenly and erroneously believed that Defendant's Motion for Judgment on the Pleadings was originally set for late August, 2025 as the result of a calendar error. (Decl. of Robert J. Tennant ¶ 4.) When he checked his calendar in the middle of the first week in August, he realized his mistake and that the hearing was actually set for the following Friday, August 8, 2025. (*Id.*) Tennant immediately started to prepare a tardy response based on his mistake regarding the hearing's actual date. (*Id.*)

On the same day Tennant discovered the calendaring error, Seth W. Weiner, Defendant's attorney of record, telephoned Tennant and suggested that Tennant might have a problem appearing at the August 8, 2025 hearing because the California State Bar's web page indicated that Tennant was currently suspended from the practice of law. (Decl. of Robert J. Tennant ¶ 4.) The next day when Tennant contacted the State Bar, they told him he was on administrative suspension because he had not provided the balance in his trust account as of December 31, 2024, and because he had not confirmed with the State Bar that his contact information that they had for him was correct. (*Id.*) Tennant, at the time, had no knowledge of his duty to do either. (*Id.*) Tennant immediately provided the State Bar with the balance in his trust account as of December 31, 2024, and provided the State Bar with confirmation as to his contact information, and paid the approximate \$1,000 in fees to the State Bar that was owed for his failure to comply with the State Bar's request that he had no knowledge of. (*Id.*)

At the date and time of the hearing on August 8, 2025, Tennant was still on administrative suspension and was unable to legally file a timely response to oppose the Motion for Judgment on the Pleadings. (Decl. of Robert J. Tennant ¶ 4.) No Response was ever filed by Plaintiff before the hearing. (*Id.* ¶ 1.)

Plaintiff argues that the calendar error, which was solely and proximately caused by Tennant, ultimately resulted in the failure to file a response because that calendar error so reduced the time in which Tennant learned of his suspension and the date of hearing, that it was rendered impossible to get another attorney to file a response before the hearing, and Tennant's administrative suspension rendered it both impossible and unlawful for Tennant to file a response before the hearing. (Pl.'s Reply in Supp. 4:3.)

In Opposition, Defendant argues that the calendar error by Plaintiff's counsel does not provide grounds for discretionary relief under Code of Civil Procedure section 473. (Mem. in Opp'n 5:16-27.)

The test for excusable neglect is whether a reasonably prudent person under the same or similar circumstances might have made the same error. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) Mis-calendaring a hearing ordinarily does not satisfy that standard, especially where no opposition was filed and relief was sought

only on the eve of the hearing. (*HUH v. Wang* (2008) 158 Cal.App.4th 1406.) A calendaring error standing alone does not automatically satisfy section 473(b); the court evaluates the totality of circumstances, including the nature of the error and counsel's diligence after discovering it. (*HUH v. Wang* (2008) 158 Cal.App.4th 1406.)

Attorney Tennant's facts align materially with the line of precedent that finds calendaring errors *non-excusable*. No Response was ever filed by Plaintiff before the hearing, and the realization came only days before the hearing date. Attorney Tennant's Declaration does not explain how the noticed hearing date was mis-read, mis-entered, or left uncorrected, and it does not identify any office practice or clerical mishap that would permit the court to find the mistake was one a reasonably prudent attorney might have made. Under the reasonably prudent attorney standard, a pure calendaring mistake of this sort is not excusable simply because counsel moved quickly after finally discovering it. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.)

Where relief is sought because counsel was suspended, the client must show due diligence upon discovering the attorney's improper conduct, and a self-caused suspension does not itself establish excusable neglect. (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 732.) An attorney's ignorance of his own professional obligations is not excusable if it reflects a failure to meet the standard of a reasonably prudent attorney. (*Henderson v. Pac. Gas & Elec. Co.* (2010) 187 Cal.App.4th 215.) Suspension-related inability to act does not itself compel discretionary relief where the underlying inability stems from counsel's own inattention or failure to understand obligations bearing on the representation. (*J.A.T. Entertainment, Inc. v. Reed* (1998) 62 Cal.App.4th 1485, 1491.)

The suspension was administratively self-caused by Tennant's own noncompliance with State Bar obligations. Even taking Tennant's Declaration at face value as evidence of his subjective lack of knowledge, that does not convert the suspension into legally excusable neglect. Under controlling authority, an attorney's ignorance of his own professional obligations is not excusable if it reflects a failure to meet the standard of a reasonably prudent attorney. (*Henderson v. Pac. Gas & Elec. Co.* (2010) 187 Cal.App.4th 215.) This record shows Tennant's actions after he learned of the suspension, but it does not show client-side diligence of the kind required by controlling authority. (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 732.)

When multiple circumstances combine to produce the failure, the court must evaluate their aggregate weight rather than isolate each factor. (*Noceti v. Whorton* (2014) 224 Cal.App.4th 1062, 1064.) Relief may be supported where compounding circumstances together caused the neglect, even if no single circumstance would be independently dispositive. (*Id.* at p. 1065.)

Plaintiff's strongest argument is that the two events compounded each other in close succession: counsel discovered the calendaring error only in the middle of the first week of August, immediately started to prepare a tardy response, was then informed he was suspended, immediately provided the State Bar with the required information, and nevertheless remained suspended at the hearing. (Decl. of Robert J. Tennant ¶ 4.) Those

facts might support an argument that, once the error was discovered, an unexpected legal disability prevented corrective action before the hearing.

But the combined effect of the two asserted grounds is not greater than the sum of the parts. One ground is non-excusable under the calendaring-error standard; the other is non-excusable under the attorney-suspension standard. Adding the suspension to the calendaring error does not increase the showing of objective reasonableness; it reinforces the inference that counsel fell below the professional standard in more than one respect at the same time. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) One problem is that counsel mis-calendared a noticed hearing date without explaining how. The second is that counsel says he did not know of duties whose noncompliance led to suspension. Considered cumulatively, those points do not resemble one understandable lapse magnified by extraordinary external conditions; they resemble multiple forms of inattention bearing directly on case management and counsel's authority to practice.

The Court recognizes that California policy strongly favors adjudication on the merits, and doubts are resolved in favor of granting relief. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) The Court further recognizes that counsel showed some post-discovery diligence by beginning work immediately and curing the reporting defects promptly, and that Plaintiff submitted a proposed opposition. (Decl. of Robert J. Tennant ¶ 4.) Diligence, a satisfactory excuse, and a showing of a potentially-meritorious position could support relief, *but* the meritorious-position factor does not substitute for an independently-adequate excuse. (*Bae v. T.D. Serv. Co. of Arizona* (2016) 245 Cal.App.4th 89.) Conduct falling below the professional standard of care is not excusable merely because it is labeled mistake or neglect. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.)

Accordingly, the Court **DENIES** Plaintiff's Motion for discretionary relief. Plaintiff has not established excusable neglect under Code of Civil Procedure section 473(b). The calendaring error falls within the category of mistakes that do not satisfy the objective reasonableness standard established by controlling case law, and the administrative suspension was self-caused by counsel's own State Bar reporting defaults and unsupported by the client-diligence showing required by law. The two circumstances together demonstrate simultaneous professional inattention rather than the kind of compounding external circumstances that warrant relief under controlling authority.

Issue 3: Discretionary relief is not appropriate here to restore pleadings.

The Court must now determine whether, notwithstanding the finding that excusable neglect has not been established, the court should nonetheless exercise its discretion under CCP section 473(b) to vacate the August 14, 2025 Order granting judgment on the pleadings without leave to amend, given California's policy favoring resolution on the merits.

Again, the Court recognizes that California policy strongly favors adjudication on the merits, and doubts are resolved in favor of granting relief. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) And that Section 473(b) statute is remedial and is liberally construed. (*Id.*) *But* in this case Section 473(b) statute requires

that the application be accompanied by an affidavit attesting to mistake, inadvertence, surprise, or excusable neglect. (§ 473.) The test for excusable neglect is whether a reasonably prudent person under the same or similar circumstances might have made the same error. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.)

Here, the Court's denial of leave to amend in the August 14, 2025 order rested on a finding that there is no showing made by Plaintiff as to how the Complaint may be amended to state a viable cause of action against Defendant. (Order 1:26-28.) Plaintiff has now submitted a Response to Defendant's Motion for Judgment on the Pleadings that purports to demonstrate how the complaint can be amended to state viable causes of action. (Pl.'s Reply in Supp. 2:14-18.) The Response requests that the Court grant Plaintiff's leave to amend his first cause of action to allege one or more of the above available predicate causes of action justified by the facts of this case that would support a Court's Imposition of the remedy of a Constructive Trust, and requests that the Court grant Plaintiff leave to amend his second through sixth causes of action by alleging Defendant's fraud and deceit in claiming sole ownership of the property after she had agreed to hold the property in trust and to reconvey said property to Plaintiff whenever the equity was needed for the retirement of Plaintiff and his wife. *Id.* 2:3-6 *id.* 2:14-18.

But California's strong policy favoring resolution on the merits does not eliminate the statutory requirement that the moving party establish mistake, inadvertence, surprise, or excusable neglect *as a threshold matter*. The discretionary-relief provision of section 473(b) authorizes the court to relieve a party from an order taken through mistake, inadvertence, surprise, or excusable neglect. (§ 473.) Where the threshold showing of excusable neglect is *not* made—and it has *not* been made here for all the reasons described in detail above—the Court lacks statutory authority to grant relief under section 473(b) regardless of the strength of California's policy favoring adjudication on the merits or the potential merit of the proposed amendments.

Accordingly, the Court declines to exercise its discretion to vacate the August 14, 2025 order granting judgment on the pleadings without leave to amend. Although California policy strongly favors resolution on the merits, the discretionary-relief provision of section 473(b) requires a threshold showing of mistake, inadvertence, surprise, or excusable neglect. Because Plaintiff has not established excusable neglect, the statutory predicate for discretionary relief is not satisfied, and thus it would be inappropriate for the Court to grant relief under section 473(b) here.

Issue 4: Defendant's request for attorneys' fees is denied because relief has *not* been granted to Plaintiff under Section 473(b).

Under the plain text of Section 473(b),⁹ Defendant is not entitled to an award of

⁹ Section 473(b) provides, in pertinent part: "The Court shall, whenever relief is *granted* based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." C.C.P. § 473(b)

attorneys' fees because that provision authorizes fee awards to opposing counsel only when the Court grants relief—and the Court here has not granted relief to Plaintiff under Section 473(b).

IV. Conclusion & Order

In the exercise of its discretion, the Court **DENIES** Plaintiff's Motion for discretionary relief under Section 473(b).

Specifically, while the Court rejects Defendant's jurisdictional challenge under Code of Civil Procedure section 1008, the Court **DENIES** Plaintiff's Motion for discretionary relief under Code of Civil Procedure section 473(b) on the merits because Plaintiff has not established excusable neglect. Moreover, the Court declines to exercise its discretion to vacate the August 14, 2025 Order because the statutory predicate for discretionary relief under Section 473(b) is not satisfied.

Moreover, the Court **DENIES** Defendant's attorney's fee request under Section 473(b) because the Court has not given Plaintiff any relief under Section 473(b).

Accordingly, the August 14, 2025 Order granting Defendant's Motion for Judgment on the Pleadings without leave to amend remains in full force and effect. Defendant is **ORDERED** to prepare and file a proposed Judgment within 10 days of today.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

(emphasis added). Here, as Plaintiff has *not* been granted relief under Section 473(b), Defendant is not entitled to any award of her attorneys' fees.

Line 9

Case Name: *John Roe 1, et al. v. Doe Entity 1, et al.*

Case No.: 22CV408177

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff John Roe 1 moves under Code of Civil Procedure Sections 379.5 and 1048 for an Order:

1. Severing John Roe 4's claims against Defendant Mountain View Whisman School District (MVWSD") from John Roe 1's claims against MVWSD;
2. Directing the Clerk to assign a separate case number to the severed John Roe 4 action;
3. Retaining the August 24, 2026 trial date for John Roe 1's claims against MVWSD;
4. Providing that John Roe's 4 shall proceed to trial on a later date determined by the Court;
5. Providing that the July 31, 2026 hearing on Pamela M. Carmon's motion to substitute as Plaintiff John Roe 4 shall remain on calendar and that any order granting substitution shall apply in the severed action;
6. Providing that several shall not require duplication of completed discovery, depositions, expert disclosures, or other proceedings;
7. Maintaining in both actions the existing protective order and the separate order permitting Plaintiffs to proceed under Court-authorized pseudonyms; and
8. Granting such other relief as the Court deems just and proper.

Notice of Motion (the "Motion") at 2:3-19 (filed: July 23, 2026).

Pamela M. Carmody, whose Motion on July 31, 2026 the Court granted to substitute as Plaintiff John Roe 4, stipulates, joins, and consents to the relief requested in this Motion. *Id.* at 2:20-22.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

PROCEDURAL BACKGROUND

This is a case filed way back in 2022 that all parties and all counsel for all parties have long known is going to trial on August 24, 2026, ever since the undersigned Judge told them over nine months ago in its December 12, 2025 Order that this already twice-continued trial is set for August 24, 2026 *and would not be continued further*.